

Court No. - 1

Case :- WRIT - C No. - 5563 of 2020

Petitioner :- Kudrat Khan

Respondent :- Uttar Pradesh Power Corporation Ltd. And Another

Counsel for Petitioner :- Ruksana

Counsel for Respondent :- Krishna Agarwal

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Heard Ms. Ruksana, learned counsel for the petitioner and Sri Suresh Kumar Maurya, Advocate holding brief of Sri Krishna Agarwal, learned counsel for respondent Nos. 2, 3 and 4.

Learned counsel for the petitioner has come up before this Court disputing the bill which is in question.

Sri Suresh Kumar Maurya holding brief of Sri Krishna Agarwal, learned counsel appearing for the Electricity Department has raised preliminary objection that the petitioner has alternative remedy to file representation before the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and against the order passed thereunder, the petitioner has remedy to approach UPERC (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007.

In view of the above, we dispose of the writ petition with liberty to the petitioner to approach the forum and we further direct that in the event he applies for under Clause 6.5 of the U.P. Electricity Supply Code, 2005 against the disputed assessment within two weeks from today along with certified copy of this order the same shall be considered in accordance with law and shall be disposed of within a further period of six weeks.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Order Date :- 14.2.2020

Shiraz